HCC 19/26
CASE NO: HCCR1905/25
X REF CHNCD 1331/24

MAGRET CHAGWIZA

VERSUS

THE STATE

HIGH COURT
MUZOFA AND BACHI-MZAWAZI JJ
CHINHOYI,9 March and 11 May 2026

Criminal appeal

T.H Maromo, for the appellant
G T Dhamusi, for the state

MUZOFA J.

The appellant was convicted after a contested trial on 3 counts of fraud in contravention of s136 of the Criminal Law [Codification and Reform Act] (Chapter 9:13) 'the Criminal Law Code'. She was sentenced to 60 months imprisonment of which 24 months were conditionally suspended for 5 years. Effective 36 months imprisonment.

The appellant was employed at Veterinary Distributors, Chinhoyi as a till operator. On 20 June 2025 she was on duty. She served a customer. The customer swiped using her POS machine. The payment was declined. She generated a goods invoice for the customer to collect the goods. Simbarashe, the appellant's supervisor happened to be in the vicinity he observed that the payment was declined. He blocked the release of goods. Suspecting that more of such transactions could have taken place, an internal audit was conducted that exposed the other two counts.

According to the State the appellant misrepresented on three occasions that she received payments through swipe for various goods. In actual fact the payments had been declined. The appellant, with full knowledge that payments had been declined generated goods invoices for dispatch to customers causing an actual prejudice of US$4183 and potential prejudice in the sum of US$1 451 to her employer.

The appellant denied the charges and raised a number of defenses that her point-of-sale machine was also used by other till operators, that the system was shambolic there was no

proper accountability, that the swipe machine was faulty and she had advised her immediate supervisor.

The state adduced evidence from three witnesses the appellant's supervisor who discovered appellant's chicanery, the internal auditor and a security guard.

After hearing all the evidence, the trial court found that, the three impugned transactions were transacted from appellant's point of sale machine (POS Machine). It also found that she generated invoices for goods sold yet the payments were declined. It rejected her defence that other till operators used her POS machine, it highlighted that on 20 June 2025 she was physically at her workstation and issued the receipt that was intercepted by security. It also rejected the assertion by the appellant that the POS machines would remit monies paid into other accounts. It reasoned that the point taken was irrelevant since the audit did not trace the alleged monies.

The appellant was then convicted and sentenced as already stated.

Dissatisfied by both the conviction and sentence the appellant noted this appeal. The grounds of appeal were set out as follows:

Ad Conviction

1. The Court *a quo* misdirected itself and therefore erred in law in its judgment by making a finding that the appellant's defence that the point-of-sale machine was used by other cashiers was not proven, except for the appellant's bold claims, when no onus rests on an accused person to prove their defence or to convince the court of the truth of any explanation they may give.
2. The Court *a quo* misdirected itself and therefore erred in fact and in law by basing its conviction on evidence not on the record, that is evidence of the appellant's use of a receipt that bore the words declined, when no such evidence was produced before the court as an exhibit.
3. The court *a quo* erred and misdirected itself in fact, in convicting the appellant when the evidence on record did not discount the appellant's defence that the complainant's chaotic banking system could account for and was responsible for, the missing transactions.
4. The court *a quo* erred in law by convicting the appellant when in fact the State had not proved the essential element of fraud, regarding the making of the misrepresentation beyond a reasonable doubt.

Ad Sentence

The Appellant appeals against the sentence of 60 months imprisonment of which 24 months imprisonment is wholly suspended for 5 years on condition the accused does not within that period commit any offence involving dishonesty for which upon conviction she is sentenced to imprisonment without the option of a fine and the remaining 36 months being an effective sentence of imprisonment, on the basis that it raises a sense of shock and revulsion in that:

1. The Court *a quo* erred both in fact and law in imposing a sentence that is manifestly excessive in the circumstances, as the Court paid lip service to the mitigatory factors, that ought to have weighed in favour of a more lenient sentence.
2. The Court *a quo* erred both in fact and law in imposing a sentence of 36 months imprisonment despite the appellant's status as a special category of offender who had recently discovered that she was pregnant.

3. The court *a quo* erred in law in failing to order the suspension of part of the sentence of imprisonment on the basis of restitution in terms of section 358 of the Criminal Procedure and Evidence Act [*Chapter 9:07*], despite the appellant offering to restitute the complainant in her mitigation statement.
4. The court *a quo* erred in law in failing to consider a sentence of imprisonment suspended on condition that the appellant performs community service in light of the appellant being a female, a first offender, who is pregnant and an offender recognised by the law as a special category of offender.

Relief Sought

1. The appeal against conviction is upheld.
2. The decision of the Court *a quo* is set aside and substituted as follows: –

The Accused is found Not Guilty and is Acquitted.

Alternatively, in the event that the appeal against conviction fails:

1. The Appeal against Sentence is upheld, and the forfeiture of the purchase price paid to Council ordered by the Court *a quo* is set aside.
2. The sentence imposed by the Court *a quo* is quashed and substituted as follows:

36 months imprisonment of which 6 months is suspended for 3 years on condition the accused in that period does not commit any offence involving dishonesty and for which she is convicted and sentenced to imprisonment without the option of a fine. A further 12 months is wholly suspended on condition the accused pays restitution to the complainant in the sum of USD $**3649.00**. The remaining 18 months is wholly suspended on condition the accused person performs community service.

The appellant's submissions

From both the oral and written submissions three issues were highlighted. Firstly, that the trial court relied on an inconclusive internal audit. The internal audit exposed the complainant's porous payment system. There was no paper accountability as to the use of POS machines and the specific banks the money was credited to. Secondly that the trial court failed to properly address the appellant's defence, that other tellers also used her POS machine, it simply dismissed it. Thirdly that the trial Court relied on a declined receipt that was not produced before it. The appellant referred the court to the case of *Charangwa vs The State HH664/15*, that a Court has a duty to analyze and evaluate the accused's defence, and not to reject without giving any reason. Reference was also made to *R v Difford 1937 AD 370*, and *S v Jachems 1991 (1) SACR (A)* that no onus rests on the accused to prove his defence.

In respect of sentence, the point taken was that the sentence was manifestly excessive. The trial court paid lip service to the highly mitigatory factors recognized by courts, that she was a pregnant female first offender who should have benefitted from a non-custodial sentence. see *S v Malunga 1990 (1) ZLR 124*, *S v Chitange HH578/16.*

The Respondent's Submissions

In its written response, the respondent did not oppose the appeal in respect of the 1st and 2nd counts. It conceded that the trial Court erred when it relied on an inaccurate internal audit. The auditor admitted that the report had a mis posting. Further that the audit was conducted in

the absence of the appellant and she was not heard. The State did not refer to any authority to support the points it relied on. It submitted that there was direct evidence from witnesses who perceived the commission of the offence in the 3rd count. The "declined" receipt was produced before the trial court. The State did not oppose the appeal against the sentence.

Mr. Maromo in response persisted that the "declined" receipt was not produced. There was no evidence to conclude that the appellant committed the offence. The appellant must be acquitted.

Analysis

The issue for determination is whether the appellant misrepresented that the goods were paid for yet in reality no payment was made and thereafter she generated invoices for customers to collect goods.

The onus is on the state to prove beyond a reasonable doubt that the appellant committed the offence. In this case the state was required to prove that the appellant made a misrepresentation to the complainant with an intention to cause the complainant to act on the misrepresentation to its prejudice. The prejudice may be actual or potential. See *Tangwena and Anor vs The State SC75/21*. In addressing the issue of prejudice, in that case the Supreme Court noted that s136 of the Criminal Law Code is couched in broad terms to encompass even situations where the misrepresentation is made to a person other than the subject of the intended prejudice.

The genesis of this whole conundrum is the third count that took place on 20 June 2025. This was a case of the appellant being caught with hand in the cookie jar. The evidence by Simbarashe was clear. The appellant served a customer and she indicated that the transaction was successful. When he asked for the receipt, he discovered that the payment was declined, but the invoice for goods had already been generated by the appellant. Invoice number 354704 generated by the appellant was produced before the trial Court. The 'declined' receipt was not produced but it was not disputed that the transaction was not honoured. Simbarashe blocked the release of goods. To err on the side of caution he even sent the security guard with the customer to verify with CBZ if the transaction was honoured. It was not. The customer then left promising to return with the proper card that had money. There was no merchant copy. A summary of the daily transaction was made; the transaction was not recorded.

Simbarashe's chronology of what transpired was not denied under cross examination. His cross examination centered on the audit, that other cashiers also stole and why they let the

customer leave. To my mind all that was irrelevant. The appellant was in control of the process; her duty was to receive payment on behalf of her employer before issuing the goods invoice.

Perhaps the most damning evidence in this regard was that of the appellant herself on page 49 and the audit report. Under cross examination she said she would generate an invoice once payment was done. It is incomprehensible that in this case, she issued the goods invoice without payment. She then attempted to distance herself from the goods invoice and said the machine printed the invoice because it was faulty. She advised the supervisor. The supervisor gave evidence and that was not put to him for his comment. The trial Court correct that this was an afterthought. Even if the machine printed the invoice the appellant is the one who handed the invoice to the customer to facilitate the collection of goods. It was common cause that the appellant served a customer, it is irrelevant that the customer was released. It was also common cause that the payment was declined and the customer was about to collect goods. What transpired on the day was confirmed in the internal audit that the fraudulent scheme involved more than one person.

The conviction cannot be impugned. Even if the receipt endorsed 'declined' was not produced, the direct evidence from Simbarashe, Takudzwa Kadurura and indeed the appellant, established that the payment was not honoured. The customer was about to collect goods but that was thwarted by Simbarashe. I am fortified in this finding by s38(3) of the High Court Act (Chapter 7:06) which gives this Court a power to dismiss an appeal even if a point has been decided in favour of an appellant and consists of a misdirection by the trial Court provided there is evidence to justify the conviction. The finding disposes of the second ground of appeal. It has no merit.

I address the first and second counts. These were discovered through the internal audit report. It was produced before the trial Court. The State's concession was based on the inaccurate audit report. During cross examination the auditor conceded that the report had four transactions yet only three were reported. She explained that this was a mis posting. It was not disputed that four transactions had failed.

There was no further evidence to discredit the whole audit report particularly as regards the three transactions forming the basis of the charges. The audit report exposed massive fraud by employees at the complainant company. Throughout the cross examination of state witnesses, the defence bemoaned why the appellant was singled out among other employees. The mis posting did not discredit the audit report completely for it to be rejected particularly taking into account that most of its findings were common cause.

The following was common cause before the trial court:

- The appellant's POS machine transacted the sales in count both counts.
- The said POS machine remitted money into the Banc ABC account.
- The complaint's payment system was chaotic, there were many POS machines that deposited monies into different banks, CBZ, ZB and Banc ABC (Borrowdale and Chinhoyi). (Each POS machine had a specific bank it remitted money. There was no evidence that one POS machine would remit money to different banks.)
- Each cashier had a personalized password to use.
- The transactions by the appellant were not reflected at the bank

The appellant's defence was that other cashiers could have generated the sales. However, the password remained her sole identity to process payments. This was a standing rule confirmed by Simbarashe and Fadzai the auditor. The only inference is that since her password was used she is the one who transacted. If she shared her password with others against company rules that cannot save her. No one can rely on their misconduct to escape liability. The appellant's explanation was unreasonable.

The next issue is whether the complainant's chaotic banking system accounted for the missing transactions. The concessions by the auditor raises a doubt on whether enough was done to locate the transactions. The re- printed invoices show that the Banc ABC POS machine was used. The audit report showed that there was the Chinhoyi and Borrowdale Banc ABC accounts. The State produced the Borrowdale Branch statements but the Chinhoyi statements were not produced. The doubt is heightened by the auditor's response at page 37 that the management decided the bank each swipe machine remitted the money but she had left the document that showed the management decision. The document was critical to establish the precise branch/ account the appellant's POS machine remitted the money. In the absence of evidence of where the money was supposed to be remitted the State case remained inclusive. With that doubt the matter should be resolved the appellant's favour.

In the final, in respect of the 1st and 2nd counts we come to the same decision as the State for different reasons.

Ad Sentence.

Since the conviction on the 1st and 2nd counts are not sustainable the appeal against sentence naturally falls away.

On the 3rd count there was potential prejudice of US$1 451 which means the employer did not suffer an prejudice. The appellant was in a position of trust she breached the trust

bestowed on her. There was premeditation as the fraud involved both insiders and outsiders. These factors must be balanced with the mitigatory factors. The appellant was a female first offender who had a young pregnancy at the time. Female offenders are usually spared the rigorous custodial sentences unless there are highly aggravating circumstances. She falls under special categories of offenders by virtue of being a female offender in terms of s21 of the Sentencing Guidelines, 2023. *State v Malunga* 1990 (1) ZLR 124 (H). S v Shinyira HMA 20/23. A rehabilitative sentence must be imposed in this case instead of a retributive one.

Accordingly, the following order is made,

First and second counts.

1. The appeal against conviction and sentence is hereby allowed.
2. The decision by be court a quo is set aside and substituted with the following,
   'Not Guilty and acquitted'

Count 3

3. The appeal against conviction is dismissed.
4. The appeal against sentence is allowed.
5. The sentence is set aside and substituted with the following
   '12 months imprisonment of which 6 months imprisonment is suspended for 5 years on condition during that period the accused is not convicted with an offence involving dishonesty of which upon conviction she is sentenced to imprisonment without the option of a fine. The remaining 6 months imprisonment is suspended on condition the accused performs community service'.
   The matter is remitted to the Court a quo for placement on community service.

Bachi Mzawazi J Agrees